Appeal of judgment dismissing my claims against Deutsche bank with prejudice in Washington county quiet title lawsuit

ORDER TO SHOW CAUSE
Appellate Court Administrator, Appellate Court Records Section
1163 State Street, Salem, Oregon 97301-2563

IN THE COURT OF APPEALS OF THE STATE OF OREGON
Annika Eriksson,
Plaintiff-Appellant,
v.
Deutsche Bank Trust Company Americas, as Trustee for Residential Accredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series 2006-QS14,
Defendant-Respondent,
and
Shadow Wood Homeowners Association et al.,
Defendants.
Washington County Circuit Court No. 23CV50085
Oregon Court of Appeals No. A184800
ORDER TO SHOW CAUSE
On July 5, 2024, appellant filed notice of appeal from a limited judgment entered June 4, 2024. The certificate of service states the notice of appeal was served on respondent rather than on respondent's attorney. ORCP 9B requires the notice of appeal to be served on respondent's attorney. See J. A. H. v. Heikkila, 355 Or @753, 333 P3d 275 (2014) (in absence of service of notice of appeal on represented party's attorney, court lacks jurisdiction over appeal, even where notice of appeal was served on represented party personally). The 30th day to timely serve the notice of appeal was July 05, 2024. Appellant shall have 14 days from the date of this order to show cause why the case should not be dismissed for failure to timely serve the notice of appeal on respondent's attorney. Failure to respond to this order will result in dismissal of the case without further notice.
The certificate of preparation and service of the transcript due date is suspended.
Theresa Kidd
Appellate Commissioner
09/19/2024
Annika Eriksson Joseph T McCormick III
Washington County Transcript Coordinator
c:

IN THE COURT OF APPEALS OF THE STATE OF OREGON
Annika Eriksson,
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v.
Deutsche Bank Trust Company Americas,
as Trustee for Residential Accredit Loans,
Inc., Mortgage Asset-Backed Pass-Through
Certificates Series 2006-QS14,
Defendant-Respondent,
Washington County Circuit Court
Case No. 23CV50085
A184800
RESPONSE TO ORDER TO SHOW CAUSE
COMES NOW Annika Eriksson, Appellant in the above-captioned matter, pro se, and submits this Response to the Order to Show Cause issued on September 19, 2024.
In response to this Court's Order to Show Cause regarding the service of documents in this matter, I state the following:
Excusable Neglect
Under ORCP 71 B(1), my failure to serve within the 30-day period constitutes excusable neglect. I misunderstood the ORAP 1.20(5) service requirements, believing electronic service was sufficient based on court-provided forms. Upon discovering this error, I took immediate corrective action by mailing the notice on July 15, 2024. See Johnson v. Babcock, 206 Or App 217, 224 (2006) (prompt corrective action supports finding of excusable neglect).
Lack of Prejudice
The respondent has suffered no prejudice. Their attorney has appeared, the record is complete as of October 2, 2024, and transcripts are prepared. Johnson, 206 Or App at 226 (absence of prejudice weighs against dismissal).
Merit of Appeal
The underlying appeal presents substantial questions warranting review. See Allen v. Hall, 127 Or App 747 (1994). The dismissal with prejudice followed circumstances directly caused by defendants' actions, including an unauthorized lockout that prevented my court appearance. These actions raise significant due process concerns that merit appellate review.
WHEREFORE, I request this Court allow this appeal to proceed, as the service delay constitutes excusable neglect under ORCP 71 B(1), caused no prejudice under Johnson, and raises substantial questions of law and equity under Allen.
I certify that, upon the confirmation email stating that the document has been accepted by the eFiling system, this Motion will be eServed pursuant to ORAP 16.45 on Joseph T McCormick III, counsel for Deutsche Bank Trust Company Americas.
Date: October 31, 2024
Annika Eriksson
Pro Se Appellant

IN THE COURT OF APPEALS OF THE STATE OF OREGON
Annika Eriksson,
Plaintiff-Appellant,
v.
Deutsche Bank Trust Company Americas, as Trustee for Residential Accredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series 2006-QS14,
Defendant-Respondent,
and
Shadow Wood Homeowners Association et al.,
Defendants.
Washington County Circuit Court
23CV50085
A184800
ORDER GRANTING EXTENSION OF TIME, NO FURTHER EXTENSIONS
Appellant has filed a Motion for Extension of Time and Relief from Default - File Response to Order to Show Cause.
The motions are granted. The Response to Order to Show Cause is now due 14 days from the date of this order.
No further extensions of time to file the Response to Order to Show Cause will be granted. Failure to file the Response to Order to Show Cause by October 31, 2024, may result in this case proceeding without the document.
Theresa Kidd
Appellate Commissioner
10/17/2024
c: Annika Eriksson
Joseph T McCormick III

IN THE COURT OF APPEALS OF THE STATE OF OREGON
Annika Eriksson,
Plaintiff-Appellant,
v.
Deutsche Bank Trust Company Americas,
as Trustee for Residential Accredit Loans,
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Certificates Series 2006-QS14,
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Date: October 31, 2024
Annika Eriksson
Pro Se Appellant

IN THE COURT OF APPEALS OF THE STATE OF OREGON

Annika Eriksson,
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v.
Deutsche Bank Trust Company Americas, as Trustee for Residential Accredit Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates Series 2006-QS14,
Defendant-Respondent,
Washington County Circuit Court Case No. 23CV50085
A184800

MOTION FOR LEAVE TO FILE A LATE NOTICE OF APPEAL AND DECLARATION IN SUPPORT

Pursuant to ORS 19.255 and ORAP 1.20(5), Appellant moves for an order allowing her appeal to proceed despite delayed service of the Notice of Appeal. The ten-day delay in service resulted directly from misleading procedural guidance in the court's e-filing system. While meticulously following the provided instructions for filing the Notice of Appeal, Appellant discovered at the final 'set service' step that e-filing was not available as a service method, despite this option appearing on the PDF form itself. The discrepancy between the court-provided form and the e-filing system's limitations created a number of unexpected hurdles, including the need for additional research, printing, and travel to the post office. Compounding this logistical burden was the discouraging feedback from court staff suggesting that default dismissal was nearly inevitable. The combination of these factors resulted in a ten-day delay in service, culminating in the mailing of the documents.

TIMELINE OF CRITICAL EVENTS

This case arises from the intersection of two major bankruptcies: the Moncktons' 2011-2015 Chapter 13 case and the jointly administered ResCap bankruptcy cases (In re Residential Capital, LLC, Case No. 12-12020; In re GMAC Mortgage, LLC, Case No. 12-12032). During this period,

Respondent's representatives explicitly identified GMAC Mortgage LLC, a debtor in the ResCap bankruptcy, as the noteholder responsible for foreclosure actions.

Despite GMAC's position, MERS, acting as nominee for Millennia Mortgage Corporation, executed an assignment in 2013 to Respondent as trustee for the RALI Series 2006-QS14 trust—a trust that had closed in 2007. This assignment raises serious validity questions under both Oregon law and New York trust law governing post-closing transfers.

That same year, Respondent was granted relief from the automatic bankruptcy stay, even though the bankruptcy court explicitly noted the absence of a proof of claim. Additionally, MERS, acting as nominee for Millennia Mortgage Corporation, recorded an assignment of the deed of trust to Respondent—despite Millennia's lack of authority to conduct business in Oregon since 2009. The assignment's validity is further undermined by its timing, occurring years after the

RALI Series 2006-QS14 trust's 2007 closing date, in apparent violation of the trust's governing documents and New York trust law.

The 2014 transactions unfold through attorney Ted Troutman's detailed billing records. Between August and October, Troutman documented a structured sale process, consulting with a real estate broker about Notice of Intent requirements and trustee permissions. By September 4, he reviewed a loan payoff response from Five Lakes Agency, JP Morgan Chase Bank's servicing agent. The negotiations with Turning Leaf Homes, LLC proceeded with specific attention to purchase agreement terms and HUD-1 closing statements. On October 3, Five Lakes Agency inquired about "if short sale is happening" - timing that coincided with GMAC's acknowledged position as noteholder responsible for foreclosure.

In 2013, the bankruptcy court granted Respondent relief from the automatic stay, explicitly noting the absence of a "proof of claim." That same year, MERS, acting as nominee for Millennia Mortgage Corporation, recorded an assignment of the deed of trust to Respondent. This assignment's validity is questionable, as Millennia's authority to conduct business in Oregon had been revoked in 2009. Additionally, the timing of the assignment raises concerns, as it occurred years after the 2007 closing date of the RALI Series 2006-QS14 trust.

In 2014, the bankruptcy court approved a sale of the property to Turning Leaf Homes LLC, subject to existing mortgage interests. Attorney Ted Troutman's billing records from August to October detail the structured sale process, including consultations with a real estate broker regarding Notice of Intent requirements and trustee permissions. On September 4, Troutman reviewed a loan payoff response from Five Lakes Agency, the servicing agent for JP Morgan Chase Bank. Negotiations with Turning Leaf Homes LLC focused on the purchase agreement terms and HUD-1 closing statements. By October 3, Five Lakes Agency inquired whether a "short sale is happening," coinciding with GMAC's acknowledgment of its position as the noteholder responsible for foreclosure.

Respondent's efforts to foreclose in 2016 and 2018 reveal inconsistent documentation. The initial 2016 foreclosure action lacked a special endorsement or allonge necessary to establish standing. Following dismissal, the 2018 filing included both a special endorsement and an allonge executed by Ocwen. The special endorsement, signed by Judy Faber of Residential Funding Company, raises further concerns, as Faber has testified under oath in other proceedings that she lacked personal knowledge of the transactions her signature purportedly endorsed. Despite these significant discrepancies in the documentation and earlier transactions, the 2018 foreclosure proceeded largely uncontested.

Appellant acquired fee title from Turning Leaf Homes, LLC, through a deed recorded December 20, 2021 as Document No. 2021-130007 in Washington County, Oregon, and maintained physical possession until January 2024. On December 7, 2023, she filed a quiet title action and recorded a lis pendens. Despite acknowledging this pending litigation on December 18, Respondent's counsel demanded a 24-hour response on January 8, 2024. This aggressive stance escalated when, on January 19, counsel directed a lockout despite explicitly acknowledging the ongoing litigation. The unauthorized lockout was executed on January 21, 2024, in direct contravention of the recorded lis pendens.

On March 14, 2024, Respondent filed a Motion to Dismiss, leveraging Appellant's lack of possession - a condition Respondent itself had created through its unauthorized lockout. When

Appellant sought leave to file a late response on April 25, the compounding effects of displacement, lost access to legal documents, and mounting health issues culminated in a missed hearing on May 13. This missed hearing, occurring just days before Appellant's May 20-23 hospitalization at Kaiser Sunnyside to treat a kidney infection and suspected sepsis, resulted in a dismissal with prejudice. The Limited Judgment was entered on June 4, 2024. Despite these challenges, Appellant timely filed a Notice of Appeal on July 5, 2024, though service of the Notice was not completed until July 15 due to confusion over the availability of electronic service. On November 13, 2024, Respondent listed the property for sale, creating an immediate threat to meaningful participation

ARGUMENT

A. Excusable Neglect Warrants Acceptance of Late Service

Under Pioneer Investment Services Co. v. Brunswick Associates Ltd. Partnership, 507 U.S. 380 (1993), courts evaluate excusable neglect by balancing four factors: (1) danger of prejudice to the opposing party; (2) length of delay and its impact on judicial proceedings; (3) reason for the

delay; and (4) whether the movant acted in good faith. Here, all factors strongly support Appellant’s request.

1. No Prejudice to Respondent

Respondent will suffer no prejudice as a result of the brief delay in service. The appellate record is prepared, and all substantive deadlines remain intact. Allowing late service promotes judicial economy by enabling resolution of significant jurisdictional issues without separate proceedings. See Deutsche Bank Trust Co. Americas v. Walmsley, 277 Or App 695, 699 (2016) (recognizing judicial efficiency in consolidating issues). Furthermore, Respondent's actions—such as continuing foreclosure proceedings despite acknowledged title disputes—undermine claims of procedural harm. See State v. Smith, 330 Or App 397 (2024) (finding no prejudice where delay did not impact substantive rights).

2. Minimal Delay Promptly Corrected

The ten-day delay was brief and remedied before any substantive deadlines passed. Appellant timely filed the Notice of Appeal on July 5, 2024, and completed service by July 15. Courts have excused delays far longer, especially when promptly addressed. See Lamm v. Lamm, 416 P.3d 310 (Or App 2018) (excusing a 30-day delay in light of immediate corrective action). Given the lack of disruption to the appellate timeline, this delay should be deemed excusable.

3. Valid Cause for Delay

The delay was caused by unforeseen technical issues with the court’s e-filing system, which unexpectedly required alternative service arrangements. Courts have recognized technological barriers as valid grounds for delay. See Oregon Occupational Safety & Health Division v. PGE Co., 119 Or App 17, 22 (1993). Additionally, Respondent’s unauthorized lockout disrupted Appellant’s access to essential documents, compounding procedural difficulties. These circumstances were beyond Appellant’s control, warranting relief.

4. Good Faith Efforts

Appellant acted in good faith, diligently addressing the service issue upon discovery. Despite facing extraordinary challenges, including hospitalization and displacement, Appellant pursued the appeal without delay tactics or improper motives. See Fritz v. Oregon State Penitentiary, 569 P.2d 654 (Or 1977) (good faith established by prompt and honest efforts to comply with

procedural rules). Appellant's consistent efforts to meet deadlines under adverse conditions reflect a sincere commitment to resolving this matter fairly.
MOTION TO ALLOW LATE APPEAL - 4
B. Equitable Estoppel Bars Respondent's Opposition
The doctrine of equitable estoppel prevents Respondent from opposing this motion because their conduct created the circumstances underlying the delay. Bennett v. City of Salem, 192 Or 531, 541, 235 P.2d 772 (1951), sets forth the required elements:
False Representations:
Respondent made false assurances, including a January 2024 notice stating, "No one can remove you or your belongings without a court order," while actively pursuing unauthorized actions.
Knowledge of True Facts:
Respondent knew of the pending litigation and legal requirements, as evidenced by prior communications. See United Foam Corp. v. Whiddon, 92 Or App 492 (1988).
Reasonable Reliance:
Appellant reasonably relied on these assurances, believing Respondent would adhere to legal procedures. See Palaia v. Oregon State Penitentiary, 66 Or App 225, 228 (1983).
Detrimental Impact:
This reliance caused severe detriment, including loss of access to legal documents, disrupted mail service, and procedural delays. See Cortez v. State, 855 P.2d 1154, 1158 (Or App 1993).
C. Judicial Estoppel Further Supports Relief
Judicial estoppel prevents Respondent from benefitting from inconsistent legal positions. The criteria established in Hampton Tree Farms, Inc. v. Jewett, 320 Or 599, 609 (1995), are satisfied:
Prior Inconsistent Positions:
Respondent previously asserted in bankruptcy proceedings that GMAC held the note, contradicting their later foreclosure claims. See In Re Deutsche Bank Trust Co. Americas, 605 F.3d 1373 (9th Cir. 2010).
Success in Prior Proceedings:
The bankruptcy court relied on these representations to grant relief from the automatic stay. See Robinson v. Deutsche Bank Trust Co. Americas, 572 F. Supp. 2d 319 (S.D.N.Y. 2008).
MOTION TO ALLOW LATE APPEAL - 5
Unfair Advantage:
Respondent now seeks to leverage procedural technicalities to dismiss Appellant's appeal, an action judicial estoppel aims to prevent.
Prejudice to Judicial Process:
Respondent's conduct undermines the integrity of judicial proceedings by obstructing Appellant's meaningful participation. See Day v. Advanced M&D Sales, Inc., 336 Or 511, 523 (2004).
D. Substantial Questions of Law Support Merit Review
The underlying case challenges the validity of the Respondent's authority to foreclose due to flawed note transfers that undermine standing. The documented sequence of transfers reveals critical flaws under both the Uniform Commercial Code (UCC) and New York trust law.

Firstly, the transfer history of the note exhibits clear irregularities. There was an initial special endorsement to Deutsche Bank, followed by an allonge by Ocwen, acting as attorney-in-fact, which transferred the note directly to the trust. This process bypassed the required intermediary transfers specified in the Pooling and Servicing Agreement. Additionally, documentation attempting to establish standing appeared only after an initial foreclosure failure.

Secondly, this sequence of transfers violates several legal standards. It breaches UCC Article 3's requirements for proper negotiation and transfer of instruments, New York trust law's strict requirements for asset transfers into securitization trusts, the trust's own governing documents regarding the proper transfer chain, and basic agency law principles concerning the scope of attorney-in-fact authority.

The Oregon Supreme Court has ruled that strict compliance with UCC requirements for note transfer is essential for foreclosure standing, as highlighted in Brandrup v. ReconTrust Co., 353 Or 668, 680 (2013). Similarly, New York courts have determined that transfers deviating from Pooling and Servicing Agreement requirements are void, not merely voidable, as seen in Wells Fargo Bank, N.A. v. Erobobo, 39 Misc.3d 1220(A) (Sup. Ct. 2013).

Lastly, these issues directly invalidate the Respondent's standing to foreclose due to improper negotiation of the note, lack of authority of parties executing transfers, and void transfers under governing trust law.

CONCLUSION

Given the significant property rights at stake and the complex legal issues involved, justice requires that these substantive questions be heard on their merits. Respondent's unauthorized lockout has already impeded development of this evidence at the trial level. Allowing procedural hurdles to prevent appellate review would compound this interference with the truth-seeking function of the courts.

The combination of procedural irregularities in document execution and substantive violations of governing law creates genuine questions about whether Respondent can establish its right to foreclose. These are precisely the type of complex commercial and property law issues that warrant full appellate review rather than dismissal on procedural grounds.

The Pioneer factors weigh decisively in favor of granting Appellant’s motion. Respondent faces no meaningful prejudice from the brief delay, while Appellant risks irreparable harm if denied the opportunity for appellate review. The delay was caused by extraordinary and unforeseeable circumstances, and Appellant acted promptly and in good faith to remedy the issue. Moreover, equitable and judicial estoppel doctrines bar Respondent from opposing this motion, given their inconsistent and misleading conduct.

Appellant respectfully requests that this Court grant leave to proceed with the appeal and accept the July 15, 2024, service of the Notice of Appeal as sufficient.

RELIEF REQUESTED

WHEREFORE, Appellant respectfully requests that this Court accept the July 15, 2024 service as sufficient and grant leave to proceed with this appeal. Counsel for Respondent, Joseph T. McCormick III of Wright, Finlay & Zak, has indicated opposition to any extension of the deadline for an appeal.

Alternatively, this Court should remand to allow amendment of claims to address Respondent's extra-judicial actions, systematic interference with case development, and fundamental violation

of due process. Respondent's unauthorized lockout, executed despite knowledge of a recorded lis pendens, included removal and disposal of Appellant's property without court order. This aggressive conduct deliberately prevented meaningful participation by creating procedural defaults through unlawful self-help remedies.

The due process violations extend beyond Appellant's immediate interests; through their agents, Respondent deprived Appellant of property without notice or a hearing. However, it was Respondent's failure to honor JP Morgan Chase's due process rights when seeking to foreclose

an invalid lien by rescission of Chase's executory authority, testifying to the court that Chase's reconveyance was recorded "in error" but excluding them from being notified of the rescission. By unlawfully locking Appellant out and ousting her from possession of the property, they created grounds for the dismissal of her complaint.

Respondent's own behavior has prevented any meaningful opportunity to present evidence of their void judgment. This warrants remand for proper consideration of these claims.

DECLARATION OF ANNIKA ERIKSSON

I, Annika Eriksson, declare under penalty of perjury under the laws of the State of Oregon that the following is true and correct:

I am the Appellant in this matter and have personal knowledge of the facts stated herein.

On December 7, 2023, I filed a quiet title action and recorded a lis pendens regarding the property at 1730 SW 203rd Ave. My investigation had uncovered serious questions about chain of title, including the 2014 bankruptcy court-approved short sale, GMAC's role as acknowledged note holder, and multiple versions of the promissory note. I also discovered that the late-appearing endorsement by Residential Funding Company bore the signature of Judy Faber, who has testified under oath in other proceedings that she lacked personal knowledge of the transactions her signature was used to endorse. These issues directly challenge Respondent's standing to foreclose.

The January 21, 2024 unauthorized lockout prevented me from developing this evidence. The sudden displacement threw both my paper and electronic filing systems into disarray. I lost access to critical documents and mail service, including unemployment benefit verifications. The forced relocation across town, combined with lack of consistent internet and printing access, severely compromised my ability to maintain my case. These disruptions created cascading financial hardships that affected even basic needs.

The irony is not lost that Respondent's unauthorized lockout forced me to relocate between these distressed properties, perpetuating a cycle of housing instability that began with the very lending practices now under scrutiny in this case. My efforts to investigate title issues and secure clear ownership represent not just my personal interest, but an attempt to address the lingering effects of questionable foreclosure practices that continue to impact equitable property rights and housing stability in our communities.

Despite the complexity of these proceedings and the severe resource constraints I face, I have maintained consistent efforts to comply with court procedures and correct any procedural

deficiencies promptly upon discovery. When preparing my Notice of Appeal, I carefully followed the court's e-filing instructions step by step, but at the very end of the submission I discovered that e-service was not available for the initial filing. I immediately began arranging alternative

service methods and completed service within ten days of discovering the unanticipated requirement.

My initial savings and proceeds from sporadic employment have been depleted through essential property maintenance costs, legal research expenses including subscriptions and transportation, and the basic expenses of life in the face of constant housing uncertainty. The stress and instability created by the lockout led to a severe deterioration in my health, culminating in hospitalization at Kaiser Sunnyside from May 20-23, 2024, for a severe kidney infection with suspected sepsis. The elevated stress markers in my blood work persisted for months, and medical complications have required ongoing treatment. The costs of transportation and document access created an additional ongoing financial burden.

Respondent's November 13, 2024 listing of the property for sale increases the urgency of circumstances and requires immediate review to prevent irreparable harm.

I hereby declare that the above statement is true to the best of my knowledge and belief and that I understand it is made for use as evidence in court and is subject to penalty for perjury.

Dated: November 29, 2024

Annika Eriksson
Appellant Pro Se
PO Box 1108 ACP 30-24
Salem, OR 97308
erikssona@icloud.com
(971) 442-5510

CERTIFICATE OF SERVICE

I certify that, upon the confirmation email stating that the document has been accepted by the eFiling system, this Motion will be eServed pursuant to ORAP 16.45 on Joseph T McCormick III, counsel for Deutsche Bank Trust Company Americas.

Dated: November 29, 2024

Annika Eriksson
Appellant Pro Se
PO Box 1108 ACP 30-24
Salem, OR 97308
erikssona@icloud.com
(971) 442-5510

IN THE COURT OF APPEALS OF THE STATE OF OREGON

Annika Eriksson, Plaintiff-Appellant

,

(LINE 1-NAME OF PLAINTIFF(S)

Plaintiff-Appellant, or

Plaintiff-Respondent,

v.

DEUTSCHE BANK TRUST COMPANY. AMERICAS, AS TRUSTEE FOR

v.

RESIDENTIAL ACCREDIT LOANS, INC. MORTGAGE ASSET-BACKED PASS- THROUGH CERTIFICATES SERIES 2006-QS14, Defendant-Respondent.

,

(LINE 2- NAME OF DEFENDANT(S)
Defendant-Respondent. or
Defendant-Appellant.
Washington County 23VC50085
County Case Number . (CIRCUIT COURT NAME) (CIRCUIT COURT NUMBER)
NOTICE OF APPEAL
1.
Annika Eriksson
(a) hereby gives notice of appeal from the judgment entered on June 4, 2024 Erik Bucher Washington (b) , by Judge (c) in (d)
County Circuit Court.
2.
The parties to this appeal are:
Annika Eriksson, P.O. Box 1108 ACP 0030-24, Salem, OR 97308
Appellant(s) : YOUR NAME, ADDRESS, and PHONE NUMBER (and EMAIL ADDRESS if you agree to receive all court correspondences by email) (503) 854-5056, erikssona@icloud.com
Deutsche Bank Trust Company Americas, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, Respondent(s):
INC. MORTGAGE ASSET-BACKED PASS- THROUGH CERTIFICATES SERIES 2006-QS14

(NAME and ADDRESS)
c/o Joseph McCormick, Wright, Finlay & Zak, LLP 4665 MacArthur Court, Suite 200, Newport Beach, CA 92660 3.

If the respondent (on appeal) is represented by counsel, provide the name, bar number, and addUeVV RI WKe UeVSRQdeQW¶V aWWRUQe\:
ATTORNEY FOR RESPONDENT: ATTORNEY FOR RESPONDENT: Deutsche Bank Trust Company Americas, AS TRUSTEE
ReVSRQdeQW¶V QaPe_____ ReVSRQdeQW¶V QaPe_____ FOR RESIDENTIAL ACCREDIT LOANS, INC.

AttoUQe\¶V QaPe AWWRUQe\¶V QaPe
MORTGAGE ASSET-BACKED PASS- THROUGH CERTIFICATES SERIES 2006-QS14

Bar # Bar #_____ Joseph T. McCormick III, OSB #182760

Address Address
Wright, Finlay & Zak, LLP 4665 MacArthur Court, Suite 200

_____
Newport Beach, CA 92660

4.
INDICATE YOUR DESIGNATION OF RECORD
X
Appellant designates the record in its entirety, up to and including the date on which the challenged decision was entered. Therefore, in addition to the trial court file, appellant designates all exhibits submitted, and the record of all oral proceedings that occurred, during that time period.
In addition to the trial court file, appellant designates only the following portions of the record:
Trial court file only. No exhibits and no oral proceedings.
All exhibits.
The record of only the following oral proceedings:
5.
COMPLETE ONLY IF LESS THAN THE ENTIRE TRIAL COURT
RECORD IS DESIGNATED IN PARAGRAPH 4 ABOVE
Appellant intends to rely upon the following points:
6.
This appeal is timely and otherwise properly filed before the Court of Appeals because: The judgment was entered on June 4, 2024. The 30-day deadline for filing this notice of appeal fell on July 4, 2024, which is Independence Day, a legal holiday. Therefore, pursuant to Oregon Rules of Appellate Procedure (ORAP) 1.25(1), the deadline extends to the next business day, which is July 5, 2024. This notice of appeal is being filed on July 5, 2024,

within the extended deadline.
7.

Attached to this notice of appeal is a copy of the judgment being appealed from. Also attached are copies of any other orders pertinent to determining appellate jurisdiction.
July 5, 2024
DATE: SIGNATURE:
CERTIFICATE OF FILING
July 5, 2024
I certify that on DATE, I filed the original of the notice of appeal with the State Court Administrator at the following address:
ATTN: Records Section
State Court Administrator
Supreme Court Building
1163 State Street
Salem, OR 97301-2563

by the following method of filing:
INDICATE METHOD OF FILING

United States Postal Service, ordinary first class mail.

United State Postal Service, certified or registered mail, return receipt requested. Hand delivery
X
EOecWURQic FiOiQg WhURXgh Whe cRXUW¶V eFiOiQg V\VWeP
Other (specify):
CERTIFICATE OF SERVICE
I certify that on (DATE), I served a true copy of the notice of appeal to the following parties at the addresses set forth below. NOTE: If an address is not already provided below then you must fill in the address for each party that you serve. If no address is present then the court will assume that you did not serve that party.
RESPONDENT: NAME AND ADDRESS
DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR RESIDENTIAL ACCREDIT LOANS, INC. MORTGAGE ASSET-BACKED PASS- THROUGH CERTIFICATES SERIES 2006-QS14 TRIAL COURT ADMINISTRATOR: TRIAL COURT ADDRESS
Richard E. Moellmer, Trial Court Administrator, Washington County Circuit Court, Washington County Courthouse, 150 N 1st Avenue MS37, Hillsboro, OR 97124 TRANSCRIPT COORDINATOR: TRIAL COURT ADDRESS
Trial Court Transcript Coordinator, Washington County Circuit Court, Washington County Courthouse, 150 N 1st Avenue MS37, Hillsboro, OR 97124
OTHER PARTIES: NAME AND ADDRESS
by the following method of service:
INDICATE METHOD OF SERVICE
United States Postal Service, ordinary first class mail.
United State Postal Service, certified or registered mail, return receipt requested.
Hand delivery
X
EOecWURQic FiOiQg WhURXgh Whe cRXUW¶V eFiOiQg V\VWeP Other (specify):
July 5, 2024
DATE: SIGNATURE:
CERTIFICATE OF FILING
July 5, 2024
I certify that on DATE, I filed the original of the notice of appeal with the State Court Administrator at the following address:
ATTN: Records Section
State Court Administrator
Supreme Court Building
1163 State Street
Salem, OR 97301-2563

by the following method of filing:
INDICATE METHOD OF FILING

United States Postal Service, ordinary first class mail.
United State Postal Service, certified or registered mail, return receipt requested.
Hand delivery

Electronic Filing through the court's eFiling system
Other (specify):
CERTIFICATE OF SERVICE
July 8, 2024
July 6, 2024
I certify that on (DATE), I served a true copy of the notice of appeal to the following parties at the addresses set forth below. NOTE: If an address is not already provided below then you must fill in the address for each party that you serve. If no address is present then the court will assume that you did not serve that party.
DEUTSCHE BANK TRUST COMPANY AMERICAS, AS TRUSTEE FOR

RESPONDENT: NAME AND ADDRESS
Deutsche Bank Trust Company Americas, c/o Joseph
RESIDENTIAL ACCREDIT LOANS, INC. MORTGAGE ASSET BACKED McCormick, Wright, Finlay & Zak, LLP,
BACKED

SERIES 2006-QS14
PASS- THROUGH CERTIFICATES SERIES 2006-QS14, c/o Joseph McCormick, Wright, Finlay & Zak, LLP, 4665 MacArthur Court, Suite 200
4665 MacArthur Court, Suite 200, Newport Beach, CA 92660

TRIAL COURT ADMINISTRATOR: TRIAL COURT ADDRESS
Washington County Courthouse
Richard E. Moellmer, Trial Court Administrator,

Washington County Circuit Court, Washington County Courthouse, 150 N 1st Avenue MS37, Hillsboro, OR 97124 150 N 1st Avenue MS37, Hillsboro, OR 97124

TRANSCRIPT COORDINATOR: TRIAL COURT ADDRESS 150 N 1st Avenue MS37, Hillsboro, OR 97124
Washington County Courthouse
Trial Court Transcript Coordinator,

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